STATE OF DELAWARE
DEPARTMENT OF TECHNOLOGY AND INFORMATION
801 Silver Lake Blvd.
Dover, Delaware 19904

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Policy Title:	Digital Accessibility Policy	

Synopsis:	This policy contains scope and technical requirements for State of Delaware agencies to ensure accessibility and usability for all digital information by individuals with disabilities.
Authority:	Title 29 Chapter 90C Delaware Code, §9004C – General Powers, duties, and functions of DTI "2) Create, implement and enforce statewide and agency technology solutions, policies, standards and guidelines, including as recommended by the CIO"
Applicability:	This policy is applicable to all users of the State of Delaware communications and computing resources. The Department of Technology and Information (DTI) is an Executive Branch Agency and has no authority over the users in Legislative and Judicial Branches, as well as Local Education Agencies, and other Federal and Local Government entities that use these resources. However, all users, including these entities, must agree to abide by all policies, standards promulgated by DTI as a condition of access and continued use of these resources.
Effective:	1/30/2023
Reviewed:	1/30/2023
Approved By:	Chief Information Officer
Sponsor:	Chief Technology Officer

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Policy

POLICY SCOPE

This Policy applies to all State of Delaware public-facing digital assets that are developed, procured, maintained, or used while offering products, services, and online information to users. This includes any accompanying support documentation and services associated with the public-facing digital channel. Employees of the State of Delaware and third-party vendors shall comply with this Policy.

EXECUTIVE SUMMARY

The State of Delaware is committed to providing the most enjoyable and informative experience to all. This includes a commitment to accessibility, diversity, and inclusion. We are working to ensure that all State of Delaware Information and Communication Technology (ICT) is accessible to and usable by individuals with disabilities, in accordance with federal, state, and local law.

POLICY STATEMENT

We have policies and procedures in place to help guarantee that we comply with the World Wide Web Consortium (W3C) Web Content Accessibility Guidelines (WCAG) 2.1 Level A and AA guidelines for websites and mobile applications. We also have made a commitment to follow the W3C Web Content Accessibility Guidelines 2.1 (WCAG 2.1 levels A and AA) standards. We are firmly dedicated to complying with the Americans with Disabilities Act (ADA) Titles I, II and III, Section 504 and Section 508 of the Rehabilitation Act of 1973, the 21st Century Communications and Video Accessibility Act of 2010 (CVAA), and Title 6 Delaware Code 4504.

POLICY PROVISIONS

General Procedures

1. External communication - The State of Delaware will maintain a publicly available Accessibility Statement in support of the State's Digital Accessibility Policy. This statement should be available directly from the State of Delaware homepage. Each

department will maintain relevant information about the accessibility of public-facing websites, mobile apps, or other digital communications should be provided, as well as an accessible means by which individuals with disabilities can get further assistance. The information should be kept up to date with any new developments.

2. Training - This Policy will be communicated to all State of Delaware departments responsible for public-facing digital assets, including, but not limited to service representatives, product managers, project managers, designers, developers, engineers, content authors, QA analysts, and compliance/risk managers. The Policy will also be communicated to external vendors and contractors who develop public-facing digital assets for State of Delaware. Training will be offered through the Delaware Learning Center to help identified staff implement the Policy. Training will be coordinated and facilitated by the State of Delaware Digital Accessibility Program Senior Manager or their designate.

Responsibilities

1. State of Delaware Digital Accessibility Senior Manager - Upon adoption of this policy, the State of Delaware Digital Accessibility Senior Manager will be responsible for the enterprise accessibility program. All State of Delaware departments responsible for public-facing digital assets should contact the Digital Accessibility Senior Manager to answer any questions about accessibility, address the accessibility of covered digital assets, and assist in handling alternative format requests. The Digital Accessibility Senior Manager will review this policy annually, to ensure both its applicability and compliance with emerging regulations and standards.
2. Compliance - All State of Delaware departments responsible for public-facing digital assets shall collaborate with the State of Delaware Digital Accessibility Senior Manager to understand accessibility requirements, receive accessibility training, address accessibility of covered public-facing digital assets, and document how the public-facing digital assets conform to Technical Standards referenced in this Policy. Departments are responsible for implementing procedures that inform authors, developers, publishers, and procurers about applicable laws, policies, and contractual obligations.
3. Evaluation and Monitoring - All State of Delaware departments responsible for public-facing digital assets shall provide standards conformance reports on an annual basis. Reports will include both components developed by the State of Delaware and components developed by third-party vendors that are deployed on or integrated into State of Delaware managed platforms or applications. The State of Delaware will conduct

automated accessibility tests of its core website, at regularly scheduled intervals mandated by the State of Delaware Digital Accessibility Senior Manager, to identify any instances where the core website or other key digital communications are not in conformance with the Technical Standards referenced in this Policy.

EXCEPTIONS

Where compliance with this Policy is not possible, exceptions to this Policy may be granted by the State of Delaware. Requests for exceptions must be documented and submitted to the State of Delaware Digital Accessibility Program Senior Manager. Exceptions may be granted in scenarios such as not readily achievable, undue burden or fundamental alteration, user generated content, linked sites and resources, external digital content, short term digital content, orphaned digital content, back office, public safety systems, state contracts, ICT functions located in maintenance or monitoring spaces, etc. For more information, visit the following website (https://accessibility.dti.delaware.gov/).

Definitions

Accessibility – it means the degree to which an environment, service, or product allows access by as many people as possible, in particular, people with disabilities.

Accessibility Standards incorporated by reference – it means conventions, norms or requirements intended to provide access to an environment, product, or service, particularly to people with disabilities. The principle of accessibility may be mandated in law and specified in detail per regulations, standards, or codes.

Alternative Formats – it means information presented in Braille, in large print, via audio recording, or in an electronic format that can be accessed by people with disabilities. The Alternative Format must make the same content available and provide an equivalent level of access to the content by people with disabilities that is available to others who access the original document.

Public-Facing Digital Content - it includes, but is not limited to, electronic or digital content, communications or applications that are:

- In HTML, non-HTML, or mobile platform digital formats
- Public-facing and broadly disseminated, including products and services information, account information, etc.

- Public support mechanisms (e.g., chat, email, etc.)
- Digital marketing and social media content

For the purposes of this Policy – "Public-Facing Digital Content" shall not include Archival documents stored or retained solely for archival purposes to preserve an exact image of a hard copy; or draft versions of documents that are not public-facing, or which are intended for limited distribution.

Readily Achievable - it is defined as easily accomplishable and able to be carried out without much difficulty or expense. Failure to remove accessibility barriers where "readily achievable" might constitute discrimination. Determining what is "readily achievable" often involves analyzing the nature and cost of removing barriers and the overall financial resources of the business organization, among other factors. The analysis seeks to balance the benefit of the barrier's removal and the harm (e.g., cost) to the business.

Development and Revision History

Date	Revision
1/30/2023	Rev 0 - Initial version
11/4/2024	Rev 0 - Removed a reference to the Technology Investment Council

Approval Signature Block

On File	
Name & Title: State Chief Information Officer	**Date**

Listing of Appendices

Related Policies and Standards